

COUNTY OF VANCE

Absent: Commissioner Leo Kelly, Jr.

Pastor Carolyn Roy, Plank Chapel United Methodist Church, gave the invocation.

As advertised, a public hearing was held to gain citizen input on an amendment to the Vance County Planning Board Ordinance for the purpose of adding two alternate positions to the planning board. County Manager Jordan McMillen explained that the board needs these additional positions to form a more consistent quorum. The alternate members would only be allowed to vote in the event they are filling an absence.

Motion was made by Commissioner Gordon Wilder to approve the amendment to add two alternate positions to the Vance County Planning Board. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

WHEREAS, the Vance County Planning Board was established in 1997 by Ordinance #27 entitled “An Ordinance Establishing the Vance County Planning Board” pursuant to Article 18 of Chapter 153A of the North Carolina General Statutes; and

WHEREAS, the Planning Board serves a vital role in studying county land use issues, advising on potential land use related ordinance amendments, and recommending such changes to the Board of Commissioners; and

WHEREAS, from time to time the seven member board has failed to obtain a quorum for their meetings due to illness or other reasons; and

WHEREAS, the proposed amendment will allow for the addition of two alternate members as previously done for the Board of Adjustments, who will be available to allow the planning board to achieve a quorum on a more consistent basis and better serve Vance County and its citizens in reaching a timely resolution to the matters before it.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS, that:

A. The Vance County Planning Board Ordinance #27 be amended as follows (additions shown as underlined text):

1) AMEND Section 2 (A) as follows:

The Planning Board shall consist of seven members, and two (2) alternates. All members shall be citizens and residents of Vance County and shall be appointed by the Vance County Board of Commissioners, one (1) member from each of the seven (7) voting districts shall be appointed and up to two (2) at-large alternates may be appointed and available to serve in any member's absence.

B. The above amendments are effective upon adoption of this ordinance.

Adopted this 1st day of April, 2019.

Archie B. Taylor, Jr. **(signed)**
Archie B. Taylor, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

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Ms. Angie Blount, County Planner, appeared before the board regarding a rezoning request that was tabled during last month's meeting in order to allow the applicant to have a survey completed. The rezoning request was submitted by Mr. Jonathan Edwards for a parcel located between US 1 Hwy and Edwards Road (Parcel 0456 06008) to be rezoned from Residential Low Density (R30) to General Commercial 1 (GC1). Several Edwards Road residents spoke in opposition to this property being changed to commercial, so the board asked Mr. Edwards if he would be willing to subdivide the property and only rezone the US 1 Hwy frontage. Mr. Edwards stated that he would be willing to do this, and he would bring a survey (subdivision plan) back to the board during the April meeting. Ms. Blount explained that Mr. Edwards submitted a drawing plan to the planning department which meets the minimum lot sizes. The plan, however, is not an official survey and contains no official certificates.

Ms. Margaret Freeburg spoke in opposition of any part of the parcel being rezoned commercial.

County Attorney Jonathan S. Care stated that since an official survey outlining boundary lines has not been submitted to this board, he advised the board against approving this rezoning request. Commissioner Dan Brummitt asked if it could be approved contingent upon the survey being received and Attorney Care responded no. Commissioner Thomas S. Hester, Jr. asked if there was anything the board could do at this time to help Mr. Edwards. Attorney Care stated that the board should not vote on this matter until an official survey is submitted for review.

Mr. Edwards stated that the surveyor he chose did not have enough time to complete the survey before tonight's meeting. He asked the board to work with him and approve the rezoning contingent upon an official survey. Attorney Care advised against this.

This matter was tabled until an official survey is submitted to the board for review.

The next item on the agenda was a request to schedule a public hearing to gain citizen input on a proposed text amendment to the zoning ordinance. County Planner Angie Blount stated that the amendment would pertain to placement of accessory buildings. The Vance County Planning Board supports this matter.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to schedule a public hearing for the May 6th board meeting regarding a proposed text amendment to the Vance County Zoning Ordinance.

Ms. Terri Hedrick, Vance County Appearance Commission Chair, appeared before the board to discuss the ongoing problem with roadside trash and litter. She stated that the appearance commission discussed this matter during its last meeting and created the following list of suggestions for the board to consider:

- Funding to hire a full-time law enforcement officer to deal with litter and trash problems
- Ways to create revenue to generate funds for the county to hire work crews to clean up along county roadsides on a regular basis throughout the year
- Have county officials work with local news media through news releases to better communicate operational hours at the waste collection sites, what materials are accepted at the waste collection sites for trash disposal and recycling and the importance of proper trash disposal and recycling (also, can the information be mailed to citizens' home addresses)
- Use the county's Facebook page to share this information with our community
- Have county officials work with Waste Industries officials to provide better signage at the eight manned collection sites in the county to help citizens know which bins are for trash disposal and for recycling
- Have county officials work with Waste Industries officials to have more helpful and actively engaged Waste Industries employees at the manned collection sites (employees, for the most part, are not stressing to citizens that they need to place recyclables in the recycling bin and not in the trash bins)

- Placing more “Do Not Litter” signs with possible fines listed on the signs along more roads throughout the county
- Have county officials and employees lead efforts to actually enforce the litter and trash ordinances our county already has in place

Ms. Hedrick stated that the appearance commission will support the board in all of these efforts and thanked the board for considering these requests. Chairman Taylor stated that this is a priority for the board, and it will be addressed during budget deliberations.

Water District Board

Chairman Archie B. Taylor, Jr. called the Water District Board to order, and the February 2019 operations report was presented to the board for information. Chairman Archie B. Taylor, Jr. adjourned the Water District Board.

Committee Reports and Recommendations

Planning/Environmental Committee - RV/Camper Use Regulations (Zoning Amendment). Commissioner Carolyn Faines reported that the committee (Faines [C], Kelly, & Wilder) met with planning staff on Wednesday, March 13, 2019 to discuss zoning regulations for RV/Camper use in Vance County. The committee considered and referred this matter to the planning board for further study in September 2018 following concerns from a citizen at the regular board meeting. The current zoning regulations only allow campers to be present on a lot for up to 14 days if more than one utility (water, septic tank, power, etc.) is present on the lot. This has caused enforcement challenges for the county. The planning board’s recommendation is to prohibit altogether the use of campers for temporary or permanent occupation on lots and only allow temporary/recreational occupancy within approved RV parks. The proposed amendments would allow for the storage of RVs on lots. State law already prohibits permanent occupation in a camper. The committee discussed potential concerns of prohibiting the use of campers and balancing the rights of property owners vs. regulations. The majority of committee members favored the amendment, and the committee as a whole felt further public input was necessary and recommended the board set a public hearing.

Motion was made by Commissioner Carolyn Faines to set a public hearing for the May 6th meeting concerning the proposed RV/Camper Zoning Ordinance Amendment. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Public Safety Committee - Addressing Ordinance. Commissioner Gordon Wilder explained that the committee (Wilder [C], Brummitt, & Faines) met with Emergency Operations Director Brian Short to review the draft addressing ordinance. Mr. Short provided a summary of

the ordinance by section and explained that the ordinance will provide formality to the addressing process which has been in place for over 15 years. The ordinance includes procedures for naming roadways, guidelines for numbering and assigning addresses to structures, requirements for existing and new structures to post addresses, and creates an enforcement mechanism to ensure addresses are posted. The committee discussion centered on the ordinance's requirement for addresses to be posted and the committee recommended strengthening the ordinance to require address postings to be reflective. The committee discussed the importance of the ordinance for enhancing the ability of first responders to locate individuals and structures at night time and in emergency situations. The committee mentioned the possibility of volunteer fire departments providing address numbers to residents as a potential fundraising opportunity for departments. The committee was in favor of proceeding with the addressing ordinance and recommended the board set a public hearing for the next board meeting.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to set a public hearing for the May 6th meeting concerning the proposed Addressing Ordinance.

Properties Committee - Farmer's Market Rental Rate. Commissioner Dan Brummitt stated that the committee (Brummitt [C], Taylor, & Wilder) met on Thursday, March 28th to discuss changes to the rental rates for the Vance County Farmer's Market. The existing rates are \$200 minimum for four hours and \$400 for up to eight hours. The committee was agreeable with the farmer's market advisory committee recommendation to change this to \$200 minimum for four hours and \$50 per hour over four hours. The committee felt this created greater flexibility and could contribute to greater usage of the facility. The committee also reviewed a proposal to reduce the fee for governmental use of the facility (other than the county) and recommended a fee that was appropriate to cover staff, utility, and other operational costs. The committee recommended reducing the fee for governmental use of the facility to \$100 for up to four hours and \$25 per hour thereafter.

Motion was made by Commissioner Dan Brummitt to approve a revised fee of \$200 for up to four hours usage of the farmer's market and \$50 per each additional hour with a reduced fee of \$100 for up to four hours and \$25 per each additional hour for state, federal, and city government use of the facility. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Properties Committee - Selection of Architect for DSS Relocation. Commissioner Brummitt reported that the committee met with staff and the DSS Director to discuss the selection of an architect for the DSS relocation project. Staff informed the committee that a request for qualifications was advertised in February with responses from two firms - Oakley, Collier Architects and Baxter Armistead Architecture. The committee discussed pros and cons of each and felt both were capable firms based upon previous experience with the county. The county manager recommended proceeding with Oakley, Collier based upon their previous planning involvement for the DSS relocation and based upon their RFQ response that addressed experience with the state department of Health and Human Services to ensure maximum reimbursement on the project. Committee members expressed concern with the previous project cost estimates and discussed their desire to be closely involved to ensure cost is limited. The committee requested staff to research the project budget and cost per foot of other recent DSS projects in the state. The committee also held a discussion as to whether the county should own the building or provide it to investors who could complete the work and provide a lease to the county. Staff informed the committee that based upon previous research the reimbursement rates would not be more advantageous in a lease situation. The committee ultimately favored owning the building and recommended selecting Oakley, Collier as the architect.

Motion was made by Commissioner Dan Brummitt to select Oakley, Collier as the architect for the DSS relocation project and authorize the county manager to negotiate a contract. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Properties Committee - Henderson Middle School. Commissioner Brummitt stated that the committee reviewed a letter from the school system seeking a decision as to whether the county had interest in acquiring the former Henderson High/Middle School. The committee mentioned the existing school program being maintained on the property and agreed that both Eaton Johnson and Henderson Middle School were too much for the county to take on at one time from a budgetary standpoint. The committee expressed a desire for the school system to take the appropriate measures to preserve the architecture and mentioned a willingness for the county to assist the school system with getting the building declared as historical.

Motion was made by Commissioner Dan Brummitt to decline the option from Vance County Schools to obtain the former Henderson Middle School. This motion was seconded by Commissioner Gordon Wilder.

Commissioner Yolanda Feimster asked numerous questions about this process and if the county had considered obtaining this property. County Manager Jordan McMillen stated that the county is not in a position to take on additional debt at this time. He noted that there have been a number of visits to the school by potential buyers, and some seem to be interested.

After further discussion, the vote on the motion to decline the option from Vance County Schools to obtain the former Henderson Middle School was ayes – five (5); noes – one (1), with the dissenting vote being cast by Commissioner Yolanda Feimster.

Properties Committee - Asbestos Abatement/Demolition (County Owned Property). The committee reviewed quotes for asbestos abatement and demolition for county owned property on Warrenton Road (former People's Grocery property). The property contains several buildings including the former store building, a one story residence and a two story residence or boarding house. The existing low bid is \$8,940 (AB Control) for asbestos abatement and \$14,200 for demolition (Faulkner Grading & Landscaping). The committee recommended that staff proceed with asbestos abatement for the one-story residential structure with AB Control and explore whether a controlled burn is an option for both of the residential structures after removal of asbestos. The committee discussed the possibility of taking the asbestos materials from the former store building directly to the landfill to avoid the higher abatement costs.

Motion was made by Commissioner Dan Brummitt to authorize the county manager to enter into a contract with AB Control in an amount not to exceed \$8,940 for asbestos abatement for county owned property located on tax parcel 0526 02008. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

County Attorney's Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during its March meeting, the board of commissioners approved the public sale process for Lot 38 Freedom Lane (Parcel 0541D01034) and Lot 6 Big Ruin Creek Lane (Parcel 0404 03029). The properties were advertised through the upset bid process and none were received. The board is now free to sell the properties or reject the offers. This should be done by resolution.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to adopt the following resolutions accepting the bids for Lot 38 Freedom Lane (Parcel 0541D01034) and Lot 6 Big Ruin Creek Lane (Parcel 0404 03029).

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **March 14, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Kimberly Johnson*** in the amount of **\$5,512.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 1st day of April, 2019.

Archie B. Taylor, Jr. (signed)
Archie B. Taylor, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

Lot 6 Big Ruin Creek Lane, Henderson, North Carolina 27537, Vance County Tax Department Parcel Number 0404 03029.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **March 14, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Milton Fuentes*** in the amount of **\$3,500.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 1st day of April, 2019.

Archie B. Taylor, Jr. (signed)
Archie B. Taylor, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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REO Property – New Offer. Attorney Care stated that an offer had been received from Lateef Phoenix for real property located at 435 N. Chestnut Street, Henderson, NC - parcel 0098 07016. He stated that the offer meets the new requirements established by the board and did not go through committee. He stated that the Board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolution to begin the upset bid process for the properties.

Motion was made by Commissioner Gordon Wilder to approve the following resolution authorizing the upset bid process for real property located at 435 N. Chestnut Street, Henderson, NC - parcel 0098 07016, contingent upon the City of Henderson taking similar action. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
435 N. Chestnut Street, Henderson, NC 27536**

WHEREAS, Vance County owns certain real property with an address of **435 N. Chestnut Street, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Numbers **0098 07016**; and,

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and,

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$750.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Lateef Phoenix***; and,

WHEREAS, ***Lateef Phoenix*** has paid the required deposit in the amount of **\$750.00** with their initial offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.

4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.

5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.

6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

Adopted this the 1st day of April, 2019.

Archie B. Taylor, Jr. **(signed)**
Archie B. Taylor, Jr., Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom **(signed)**
Kelly H. Grissom, Clerk to the Board

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County Manager's Report

Fireworks Permit - Tourism. County Manager Jordan McMillen stated that the Vance County Tourism Department is requesting approval of a fireworks permit for its annual Independence Day celebration at Kerr Lake. According to Tourism Director Pam Hester, the work will be contracted with a professional pyrotechnics firm which has the appropriate credentials and insurance coverage.

2020 Census. Mr. McMillen informed the board that today marks one year from the start of the 2020 census count. April 1, 2020 is Census Day 2020. The US Census Bureau has been in touch with the county and is advocating for the creation of a complete county committee similar to what we did prior to the 2010 census. We intend to form a complete count committee made up of citizens who will be instrumental in creating awareness, advocating, and marketing for better participation in the census. For the 2020 census, every household will have the option of responding online, by mail, or by phone. Nearly every household will receive an invitation to participate in the summer/fall 2019 with in-field address canvassing beginning in fall 2019. During the 2010 census, Vance County's participation rate was 73% and the goal for the upcoming census is a 5% improvement. Greater participation in the census can impact reapportionment of congressional seats, and distribution of more than \$675 billion in federal funds annually to the states, counties and communities vital programs such as housing, education, transportation, employment, health care and public policy.

FY19-20 Budget Update. Mr. McMillen reported that the FY 2019-20 manager's recommended budget is scheduled to be presented to the Board of Commissioners on Monday, May 6.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following consent agenda items as presented: Budget Transfers #16 - #18, February 2019 Tax Refunds and Releases, departmental monthly reports, and the minutes of the March 11, 2019 regular meeting.

[illegible]

Transfer From:	Account Number	Amount
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Appointments. The following appointments were presented to the Board for consideration:

Appoint Sandra Abbott, Dottie Crocker, and Rose Jarrell to fill vacant positions.

Motion was made by Commissioner Thomas S. Hester, Jr. to enter into closed session to discuss an economic development matter. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Upon return to open session, and as there was no further business, at 8:25 p.m., motion was made by Commissioner Leo Kelly, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, that the meeting be adjourned.

Approved and signed May 6, 2019.

Archie B. Taylor, Jr. (signed)
Archie B. Taylor, Jr., Chairman